

4. **Jurisdiction of the Court over corporate bodies.**— With this *visitatorial* power the Court has nothing to do: it is only as respects the administration of the corporate *property* that equity assumes to itself any right of interference (*f*).

[*529] *5. **Informal election.**— **Mal-administration.**— Upon the ground of this distinction between the visitatorial power and the management of the revenue, an information for the *removal of governors or other corporators*, as having been irregularly appointed, would be dismissed with costs (*a*); but wherever the administration of the *property* by the governors can be shown to have a tendency to pervert the end of the institution, the Court will immediately interpose, and put a stop to such wrongful application (*b*).

6. **How property newly given is affected by the visitatorial power.**— An estate newly bestowed upon an old corporation is not to be regarded in the same light as property with which the charity was originally endowed. The visitatorial power is *forum domesticum*—the private jurisdiction of the founder; and the new gift will not be made subject to it, unless the will of the donor be either actually expressed to that effect, or is to be collected by necessary implication (*c*).

(*f*) See the observations of Lord Commissioner Eyre in *Attorney-General v. The Governors of the Foundling Hospital*, 2 Ves. jun. 47. But Chief Baron Richards once observed, he had been of counsel in the Foundling Hospital case, and he remembered some of the first men of the bar were not satisfied with the decision; *In re Chertsey Market*, 6 Price, 272. See also the observations of Lord Hardwicke in *Attorney-General v. Lock*, 3 Atk. 165; and see upon this subject generally *Ex parte Berkhamstead Free School*, 2 V. & B. 138; *The Poor of Chelmsford v. Mildmay, Duke*, 83; *Attorney-General v. Earl of Clarendon*, 17 Ves. 499; *Eden v. Foster*, 2 P. W. 326; *Attorney-General v. Dixie*, 13 Ves. 533, 539; *Attorney-General v. Corporation of Bedford*, 2 Ves. 505; 5 Sim. 578; *Attorney-General v. Browne's Hospital*, 17

Sim. 137; *Attorney-General v. Dedham School*, 23 Beav. 350; *Daugars v. Rivaz*, 28 Beav. 233.

(*a*) *Attorney-General v. Earl of Clarendon*, 17 Ves. 491, see 498; *Whiston v. Dean and Chapter of Rochester*, 7 Hare, 532; *Attorney-General v. Dixie*, 13 Ves. 519; *Attorney-General v. Middleton*, 2 Ves. 327, see 330; *Attorney-General v. Dulwich College*, 4 Beav. 255; *Attorney-General v. Magdalen College, Oxford*, 10 Beav. 402; *Attorney-General v. Corporation of Bedford*, Id. 505; *In re Bedford Charity*, 5 Sim. 578.

(*b*) See *Attorney-General v. St. Cross Hospital*, 17 Beav. 435; *Attorney-General v. The Governors of the Foundling Hospital*, 2 Ves. jun. 48; *Attorney-General v. Earl of Clarendon*, 17 Ves. 499.

(*c*) *Green v. Rutherford*, 1 Ves. sen. 472, *per* Lord Hardwicke.